

File No.: EXP202105613 (PS/00540/2022)

RESOLUTION OF SANCTIONING PROCEDURE

From the procedure instructed by the Spanish Agency for Data Protection and based on the following:
BACKGROUND

FIRST: A.A.A., B.B.B., C.C.C., D.D.D., E.E.E., and F.F.F. (hereinafter, the complainants) filed a complaint on November 3, 2021, with the Directorate of Supervision and Control of Data Protection of the General Council of the Judiciary for the alleged violation of data protection legislation. Since the processing in question is not related to a jurisdictional purpose (Article 236.bis of the Organic Law of the Judiciary), the Directorate of Supervision and Control of Data Protection of the General Council of the Judiciary, by resolution dated November 23, 2021, transferred the matter to this Agency, which was received on November 25, 2021, as a complaint against ASOCIACIÓN CONTRA LA CORRUPCIÓN Y EN DEFENSA DE LA ACCIÓN PÚBLICA with NIF G88251046 (hereinafter, ACODAP).

The reasons for the complaint are as follows: A copy of an order from the Central Court of Instruction No. 4 has been posted on ACODAP's website, which, without any anonymization, indicates the identification of the complainants and the alleged crimes subject to the complaint, among other matters. In this way, ACODAP has disseminated personal data of the complainants, which it accessed due to its involvement in a judicial proceeding. Along with the complaint, images of the "Press Release" and the copy of the order from the Central Court of Instruction No. 4 are provided, both published on ACODAP's website on October 29, 2021, where the complainants' data is recorded. SECOND: On December 7, 2021, it was confirmed that the complainants' data was published at the following internet addresses:

***URL.1

***URL.2

***URL.3

THIRD: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), on December 29, 2021, the complaint was forwarded to ACODAP for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

The transfer, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was not acknowledged by the responsible party; the transfer was reiterated on January 28, 2022, by certified postal mail, and was again returned for "incorrect address."

FOURTH: On February 24, 2022, in accordance with Article 65 of the LOPDGDD, the complaint filed by the complainant was admitted for processing.

FIFTH: On April 1, 2022, an urgent precautionary measure for the removal of the content was sent to the ASOCIACIÓN CONTRA LA CORRUPCIÓN Y EN DEFENSA DE LA ACCIÓN PÚBLICA (hereinafter, ACODAP) via electronic and postal notification, reiterated on May 10, 2022; none of these notifications were collected.

On May 27, 2022, this Agency issued a resolution adopting a provisional measure, sending this precautionary measure to the registrar of the internet domain of ACODAP, PRORED COMUNICACIONES, S.L., on May 30, 2022.

On May 30, 2022, a response was received in this Agency, with registration number REGAGE22e00021506799, stating that the responsible entity for hosting ACODAP's website had been informed of our request, confirming that, as of the date of submission of this response, the content of the indicated internet addresses is not accessible.

SIXTH: The General Subdirector for Data Inspection proceeded to carry out preliminary investigative actions to clarify the facts in question, by virtue of the functions assigned to control authorities in Article 57.1 and the powers granted in Article 58.1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and in accordance with the provisions of Title VII, Chapter I, Section Two, of the LOPDGDD, being aware of the following points:

On March 25, 2022, the printout of the Legal Notice, the statutes of this association, the Privacy Policy, and the registration of the association were incorporated into these proceedings.

On May 31, 2022, a document was received in this Agency, with registration number REGAGE22e00021662746, sent by the representative of ACODAP requesting the file initiated from the complaint and to be kept informed of future actions taken by this Agency. In this regard, on June 15, 2022, a document was sent to ACODAP, but the notification was not collected. This document was sent again on June 28, 2022, to the electronic address provided by the representative of the association, but it also expired as it was not collected.

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On June 1, 2022, this inspection verifies that the claimed content has been removed.

As of the issuance of this report, September 28, 2022, it is confirmed that the ACODAP website, <https://www.acodap.com/>, is no longer available.

CONCLUSION

The claimed facts have been verified, confirming the publication without the consent of the claimants of their personal data on the website of the ASSOCIATION AGAINST CORRUPTION AND IN DEFENSE OF PUBLIC ACTION, <https://www.acodap.com/>.

At the request of this Agency, the personal data of the claimants at the internet addresses indicated in the complaint have been deleted.

SEVENTH: On February 17, 2023, the Director of the Spanish Agency for Data Protection agreed to initiate sanctioning proceedings against the respondent, in accordance with the provisions of Articles 63 and 64 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), for the alleged infringement of Article 6.1 of the GDPR, classified in Article 83.5 of the GDPR.

EIGHTH: Notified on February 20, 2023, to the representative of ACODAP of the aforementioned initiation agreement in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), the respondent submitted a written statement of allegations with the following content:

"First.- The complaint filed by the claimants that has given rise to the initiation of this sanctioning procedure constitutes a retaliation prohibited by DIRECTIVE (EU) 2019/1937 OF THE EUROPEAN PARLIAMENT AND OF THE COUNCIL of October 23, 2019, concerning the protection of persons who report breaches of Union law, and by Law 2/2023, of February 20, regulating the protection of persons who report regulatory infringements and combating corruption.

Both regulatory texts include as a novelty the whistleblowing boxes or channels, as a legal instrument to convey to the authorities responsible for processing reports or information related to the fight against corruption.

In this sense, ACODAP is an external whistleblowing channel and the holder of the whistleblowing box hosted on its website.

The Spanish law transposing the Directive (which will come into force on March 13, and which will apply retroactively to December 17, 2021) protects whistleblowers or informants from, among others: 2.1.b) Actions or omissions that may constitute a serious or very serious criminal or administrative infringement.

The complaint by ACODAP and Judge G.G.G. referred to in this sanctioning procedure was filed before the courts of instruction in Madrid, with the content attached as DOCUMENT No. 1, listing the now claimants as defendants.

The order whose disclosure on the ACODAP website is the subject of this sanctioning procedure was the resolution that precisely admitted our initial complaint for processing, which evidently constituted news of general interest to the extent that it agreed to initiate a criminal investigation against

individuals of evident public projection, all of whom currently hold positions of enormous legal and political relevance.

Moreover, the crimes that the investigating court attributed to all of them could call into question the honorability that is precisely predicated on the exercise of such public positions.

For that reason, as a whistleblowing box, ACODAP decided to publish the news on its website, accompanying the court order as a contrasting document.

It made no sense to anonymize the order, because it was precisely the order that was the news.

This is also the practice followed by the CGPJ when its press office publishes an order or a judgment that does so without anonymizing, as can be easily verified.

All this is noted to emphasize that the complaint that has given rise to this sanctioning procedure is clearly a retaliation and must be immediately archived.

This is clearly stated in Articles 21.7 of the Directive and 38.5 of the transposition law, to which effect: In judicial proceedings, including those relating to defamation, violation of copyright, breach of secrecy, infringement of data protection regulations, disclosure of trade secrets, or requests for compensation based on labor or statutory law, the persons referred to in Article 3 of this law shall not incur any liability of any kind as a result of communications or public disclosures protected by it. Such persons shall have the right to plead in their defense and within the framework of the aforementioned judicial proceedings, that they have communicated or made a public disclosure, provided that they had reasonable grounds to believe that the communication or public disclosure was necessary to reveal an infringement under this law.

SECOND.- All publications made by ACODAP are done under the protection granted by the provisions of Article 6.1 e) of Regulation (EU) 2016/679 of the European Parliament and of the Council of April 27, 2016, regarding the protection of natural persons with regard to the processing of personal data and the free movement of such data, processing necessary for the performance of a task.

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carried out in the public interest or in the exercise of public powers conferred upon the data controller.”

NINTH: On September 27, 2023, the instructing body of the sanctioning procedure issued a proposal for resolution, in which it proposes that the Director of the AEPD sanction ACODAP, with NIF G88251046, for an infringement of Article 5.1.b) of the GDPR, classified under Article 83.5 of the GDPR, with a fine of €10,000 (ten thousand euros).

This proposal for resolution, which was notified to ACODAP in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (LPACAP), was received on October 13, 2023, as evidenced by the acknowledgment of receipt in the file.

TENTH: The aforementioned proposal for resolution was notified in accordance with the rules established in the LPACAP, and after the period granted for the submission of allegations had elapsed, it has been confirmed that no allegations have been received from ACODAP.

From the actions taken in this procedure and the documentation in the file, the following has been established:

PROVEN FACTS

FIRST: On October 28, 2021, the Central Court of Instruction No. 4 issued an order identifying the claimants and the alleged crimes subject to complaint, with Mr. G.G.G., acting in his own name and simultaneously on behalf and representation of ACODAP, who initiated legal actions against the claimants before the National Court.

SECOND: On October 29, 2021, a “press release” titled “***NOTE.1” was published on the website “www.acodap.com,” along with a copy of the order from the Central Court of Instruction No. 4, which includes the names and surnames of the claimants without anonymization, and the facts subject to complaint.

THIRD: On December 7, 2021, this Agency confirmed that the data of the claimants and the judicial order referred to in Proven Fact Second were published on the following internet addresses:

***URL.1

***URL.2

The personal data of the claimants was published at the following link:

***URL.3

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FOURTH: According to the printout in the file, from the "Legal Notice" of the website "www.acodap.com," dated March 25, 2022, the holder of this website and responsible for the processing of personal data carried out on it is: ASSOCIATION AGAINST CORRUPTION AND IN DEFENSE OF PUBLIC ACTION (ACODAP).

FIFTH: On June 1, 2022, this Agency verified that the subject of the complaint, the publication on the internet of press releases and a judicial order containing the personal data of the claimants through the websites mentioned in Proven Fact Third, has been removed.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and guarantee of digital rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development, and, in so far as they do not contradict them, by the general rules on administrative procedures in a subsidiary manner."

II

Response to the allegations made by ACODAP regarding the initiation agreement and the proposal for resolution

A) In response to the allegations regarding the initiation agreement presented by the entity being complained about, the following should be noted:

FIRST. - "ACODAP is an external whistleblowing channel, and the DIRECTIVE (EU) 2019/1937 OF THE EUROPEAN PARLIAMENT AND OF THE COUNCIL of October 23, 2019, applies to it."

In order to comply with the objectives pursued by the European Union and to deepen the protection of the whistleblower, through Law 2/2023, of February 20, regulating the protection of persons who report regulatory infringements and combating corruption (hereinafter, Law 2/2023), the transposition to the

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Spanish legal system the Directive (EU) 2019/1937 of the European Parliament and of the Council of October 23, 2019 (hereinafter, Directive 2019/1937).

According to the Twelfth Final Provision of Law 2/2023, its entry into force will occur twenty days after its publication in the "Official State Gazette" (hereinafter, BOE).

Having been published in the BOE on February 21, 2023, the entry into force of Law 2/2023 took place on March 13, 2023, that is, after the events that constitute the object of the present procedure, considering that the illegal processing of the claimants' data took place

on October 29, 2021, as stated in Proven Fact Two. Consequently, in no case was Law 2/2023 in force at the time the events subject to the present procedure occurred. Nor can Directive 2019/1937 be considered applicable, firstly, because the national regulation for its transposition had not been approved, and secondly, because at the date of the events (October 29, 2021) the transposition period had not yet expired, since in Article 26 of Directive 2019/1937 the maximum date for its transposition is December 17, 2022.

Subsidiarily, it should be noted that Law 2/2023 includes an external reporting channel in its Title III, the management of which corresponds to the Independent Authority for the Protection of Whistleblowers, A.A.I. provided for in Title VIII of the aforementioned regulation. On the other hand, Law 2/2023 allows in its Article 6 for an internal reporting channel to be outsourced to an external third party. However, neither ACODAP nor D. G.G.G. can be considered an external reporting channel, as stated in their allegations, since they do not constitute the external information channel provided for in Title III of Law 2/2023, and the management of the internal information system has not been assigned to them by the General Council of the Judiciary.

Specifically, regarding the publication of the "news," ACODAP alleges that:

"Furthermore, the crimes that the investigating court attributed to all of them could call into question the honorability that is precisely predicated of the exercise of such public offices.

For that reason, as a whistleblowing channel, ACODAP decided to publish the news on its website accompanying the court order as a contrasting document."

In light of this reasoning, it should be noted:

1.- The objective of Law 2/2023 is not to pursue issues such as the "honorability that is precisely predicated of the exercise of such public offices" with which ACODAP justifies its actions, but to protect individuals who, in a work or professional context, detect serious or very serious criminal or administrative infringements and communicate them through the mechanisms regulated therein. Contrary to the argument expressed by ACODAP, Article 9.2.h) of Law 2/2023 establishes the "requirement to respect the presumption of innocence and the honor of the affected individuals."

2.- In the publication of the judicial order by ACODAP, the circumstances provided for in Article 28 of Law 2/2023 regarding the "protection conditions" for individuals making a public disclosure do not concur, as the communication did not occur in the terms required by its letter a), communication through internal channels.

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or external parties without appropriate measures being adopted in a timely manner, nor do the circumstances of letter b) of the aforementioned article apply, which means that the publication of the judicial order is not covered by this provision created by Law 2/2023. Consequently, the requirements of Article 28 of Law 2/2023 are not met to consider that the processing is lawful according to the assumption of Article 30 of the aforementioned regulation.

3.- Finally, the crimes or offenses of a sexual nature that ACODAP intends to report are not included within the material scope of application of Law 2/2023, according to its Article 2, nor within the material scope of application established in Article 2 of Directive (EU) 2019/1937.

ACODAP argues regarding the non-anonymization of the order that "This is also the practice followed by the CGPJ itself when its press office publishes an order or a judgment that does so without anonymizing, as can be easily verified." First of all, it should be noted that the General Council of the Judiciary is also subject to compliance with the applicable regulations on data protection, so the publications it makes within the scope of its competencies must respect the fundamental right to the protection of personal data (Article 18.4 of the Spanish Constitution). Secondly, the processing of personal data carried out by ACODAP is subject to the regulations applicable to it as a party in a

judicial process. Article 236 quinquies of Organic Law 6/1985, of July 1, on the Judiciary states: "The personal data that the parties know through the process must be processed by them in accordance with the general data protection regulations." Well, the personal data contained in judicial documents are provided for the legitimate exercise of the defense, not for publication, which constitutes a violation of the purposes for which such personal data have been processed.

For all the above reasons, this allegation is dismissed.

SECOND. - "The publications made by ACODAP are carried out under the legality conferred by the provisions of Article 6.1 e) of Regulation (EU) 2016/679 of the European Parliament and of the Council of April 27, 2016."

In response to this argument, first of all, it is necessary to bring to attention what was stated in the response to the previous allegation, regarding the fact that Law 2/2023 was not in force at the time of the events, and Directive (EU) 2019/1937 had not yet produced its binding effects due to the lack of transposition through a national regulation, with the maximum period for its transposition not having elapsed.

As a consequence of what was stated in the response to the previous allegation, in no case can it be considered that the publication of the personal data of the claimants could be covered by the assumption established in Article 6.1.e) of the GDPR. Article 8.2 of the LOPDGDD clarifies that the processing of personal data can only be considered based on the fulfillment of a mission carried out in the public interest or in the exercise of public powers conferred on the controller, in the terms provided in Article 6.1.e) of the GDPR when it derives from a competence attributed by a regulation with the rank of law. The management competence of the external channel of Title III of Law 2/2023 corresponds to the Independent Authority for Protection.

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of the Informant, A.A.I, in no case to an association such as ACODAP, which, moreover, is not part of the Public Administration.

For all the above reasons, this allegation is dismissed.

III

Principle of purpose limitation

Article 5.1.b), "Principles relating to processing," of the GDPR states:

"1. Personal data shall be:

a) ...

b) collected for specified, explicit, and legitimate purposes, and not further processed in a manner that is incompatible with those purposes; in accordance with Article 89, paragraph 1, further processing of personal data for archiving purposes in the public interest, scientific or historical research purposes, or statistical purposes shall not be considered incompatible with the initial purposes ('purpose limitation');"

On the other hand, Article 4 of the GDPR, Definitions, in its paragraphs 1 and 2, states:

"1) 'personal data': any information relating to an identified or identifiable natural person ('data subject'); an identifiable natural person is one who can be identified, directly or indirectly, in particular by reference to an identifier, such as a name, an identification number, location data, an online identifier, or one or more specific elements of the physical, physiological, genetic, mental, economic, cultural, or social identity of that natural person;

2) 'processing': any operation or set of operations which is performed on personal data or on sets of personal data, whether or not by automated means, such as collection, recording, organization, structuring, storage, adaptation or alteration, retrieval, consultation, use, disclosure by transmission, dissemination or otherwise making available, alignment, combination, restriction, erasure, or destruction;

(...)

Regarding the principles regulated in the aforementioned Article 5 of the GDPR, it should be noted

what is stated in Recital 39 of the GDPR: “39. Any processing of personal data must be lawful and fair. For natural persons, it must be clear that personal data concerning them is being collected, used, consulted, or otherwise processed, as well as the extent to which such data is or will be processed. The principle of transparency requires that any information and communication relating to the processing of such data be easily accessible and easy to understand, and that clear and plain language be used. This principle particularly refers to the information provided to data subjects about the identity of the data controller and the purposes of the processing, as well as additional information to ensure a...”

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fair and transparent treatment regarding the affected individuals and their right to obtain confirmation and communication of the personal data concerning them that is subject to processing. Individuals must be aware of the risks, rules, safeguards, and rights related to the processing of personal data as well as how to assert their rights in relation to the processing. In particular, the specific purposes of the processing of personal data must be explicit and legitimate, and must be determined at the time of collection. Personal data must be adequate, relevant, and limited to what is necessary for the purposes for which they are processed. This requires, in particular, ensuring that the retention period is strictly limited to a minimum. Personal data should only be processed if the purpose of the processing cannot reasonably be achieved by other means. To ensure that personal data is not retained longer than necessary, the data controller must establish deadlines for its deletion or periodic review. All reasonable measures must be taken to ensure that inaccurate personal data is rectified or deleted. Personal data must be processed in a manner that ensures adequate security and confidentiality of the personal data, including to prevent unauthorized access or use of such data and the equipment used in the processing.

Article 89.3 of the LPACAP states that: “The proposal for resolution shall set out in a reasoned manner the facts that are considered proven and their exact legal qualification, and shall determine the infringement that, if applicable, they constitute...” Although the initiation agreement considered that the facts subject to this procedure could constitute a violation of Article 6.1 of the GDPR, due to the lack of concurrence of any of the grounds that legitimize the processing in question, it is deemed appropriate to modify the classification of the infringing conduct, attributing to ACODAP an infringement of Article 5.1.b) of the GDPR, which provides that personal data shall be collected for specified, explicit, and legitimate purposes, and shall not be further processed in a manner incompatible with those purposes. Regarding the claimed facts, it is considered that there is evidence that the processing of data by ACODAP, by disseminating personal data of the claimants through the website www.acodap.com, publishing a copy of an order from the Central Court of Instruction No. 4 without any anonymization of any kind, has been carried out contrary to the specified, explicit, and legitimate purposes for which the legal system allows the parties involved in a process to have access to the personal data contained in the documents issued by the corresponding judicial body within the framework of the judicial process. In this case, being a criminal process, the determined, explicit, and legitimate purpose of accessing personal data can only be to obtain effective judicial protection, both by the accusing party and by the accused party in that process.

For all these reasons, the facts subject to the complaint constitute a violation of Article 5.1.b) of the GDPR, as the personal data is transferred for the legitimate exercise of the defense of the positions of the parties in the process, not to be published either at the time it occurred or at any later time, which constitutes a violation of the purposes for which such personal data has been processed.

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IV

Typification and Qualification of the Infraction

The cited infraction of Article 5.1.b) of the GDPR constitutes the commission of the infractions typified in Article 83.5 of the GDPR, which under the heading "General Conditions for the Imposition of Administrative Fines" provides:

"Infractions of the following provisions shall be sanctioned, in accordance with paragraph 2, with administrative fines of up to 20,000,000 EUR or, in the case of an enterprise, an amount equivalent to a maximum of 4% of the total annual global turnover of the previous financial year, opting for the higher amount:

a) the basic principles for processing, including the conditions for consent under Articles 5, 6, 7, and 9; (...)."

In this regard, the LOPDGDD, in its Article 71 "Infractions," establishes that "Acts and behaviors referred to in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679, as well as those contrary to this organic law, constitute infractions."

For the purposes of the statute of limitations, Article 72 "Infractions Considered Very Serious" of the LOPDGDD indicates:

1. Based on what is established in Article 83.5 of Regulation (EU) 2016/679, the following infractions are considered very serious and shall be subject to a three-year statute of limitations, which involve a substantial violation of the articles mentioned therein and, in particular, the following:

a) The processing of personal data violating the principles and guarantees established in Article 5 of Regulation (EU) 2016/679."

V

Sanction for the Infraction of Article 5.1.b) of the GDPR

For the purpose of deciding on the imposition of an administrative fine and its amount, in accordance with the evidence available at this moment of resolution of the sanctioning procedure, it is considered appropriate to gradate the sanction to be imposed according to the following criteria established in Article 83.2 of the GDPR.

As circumstances of Article 83.2 of the GDPR, understood in this case as aggravating:

- The nature, gravity, and duration of the infraction, taking into account the nature, scope, or purpose of the processing operation in question, as well as the number of affected parties and the level of damage and harm suffered (paragraph a): Due to the unauthorized dissemination of personal data of at least 6 affected individuals from October 29, 2021, to December 2021.

- The intentionality or negligence in the infraction (paragraph b): The personal data of the claimants contained in the judicial order, to which Mr. G.G.G., legal representative of ACODAP, has had access in his capacity as complainant, are published by ACODAP on its website with the intention of illustrating the news to which it accompanies. The publication of personal data without anonymization was not due to any type of negligence, but was done intentionally, as ACODAP states in its allegations to the initiation agreement of the present procedure: "ACODAP decided to publish the news on its website accompanying the court order as a contrasting document... It made no sense to anonymize the order, because precisely the order was the news."

For the purpose of deciding on the imposition of an administrative fine and its amount, in accordance with the evidence available at this moment of resolution of the sanctioning procedure, it is considered that the balance of the circumstances contemplated in Article 83.2 of the GDPR, with respect to the infraction committed by violating what is established in Article 5.1.b) of the GDPR, allows for the imposition of a sanction of €10,000 (ten thousand euros).

Therefore, in accordance with the applicable legislation and having assessed the criteria for the gradation of the sanctions whose existence has been established, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO IMPOSE on ASOCIACIÓN CONTRA LA CORRUPCIÓN Y EN DEFENSA DE LA ACCIÓN PÚBLICA, with NIF G88251046, for an infraction of Article 5.1.b) of the GDPR, typified in Article 83.5 of the GDPR, a fine of ten thousand euros (€10,000).

SECOND: TO NOTIFY this resolution to ASOCIACIÓN CONTRA LA CORRUPCIÓN Y EN DEFENSA DE LA ACCIÓN PÚBLICA.

THIRD: To warn the sanctioned party that they must pay the imposed fine once this resolution becomes enforceable, in accordance with the provisions of Article 98.1.b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter LPACAP), within the voluntary payment period established in Article 68 of the General Collection Regulation, approved by Royal Decree 939/2005, of July 29, in relation to Article 62 of Law 58/2003, of December 17, by making the payment, indicating the NIF of the sanctioned party and the procedure number that appears in the heading of this document, in the restricted account No. ES00 0000 0000 0000 0000 0000, opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A. Otherwise, collection will proceed in the executive period.

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Upon receipt of the notification and once it is executive, if the date of executive status falls between the 1st and the 15th of each month, inclusive, the deadline for making voluntary payment will be until the 20th of the following month or the next business day thereafter, and if it falls between the 16th and the last day of each month, inclusive, the payment deadline will be until the 5th of the second following month or the next business day thereafter.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law. Finally, it is noted that in accordance with the provisions of Article 90.3 a) of the LPACAP, the firm resolution in the administrative procedure may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of the aforementioned Law 39/2015, of October 1. They must also provide the Agency with documentation that proves the effective filing of the contentious-administrative appeal. If the Agency does not become aware of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, it will consider the provisional suspension to be concluded.

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Mar España Martí

Director of the Spanish Agency for Data Protection

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